

		At this stage, Plaintiff has adequately alleged facts which, if proven, could support a claim that Defendant misled Plaintiff and decedent regarding the available treatments for COVID-19. Whether Plaintiff can support the elements of her claim with evidence, including Defendant gaining an advantage and Plaintiff or decedent suffering prejudice, can be decided at a later stage. As for Defendant's contention that Plaintiff's claim is barred by the PREP Act, Defendant has not presented evidence or requested judicial notice of matters which could allow the Court to determine this issue at the pleading stage. For example, Defendant contends Remdesivir, which was allegedly provided to decedent, was a "covered countermeasure" because it was FDA-approved at relevant times. Defendant cites an FDA document which is not the subject of a request for judicial notice, but the Court cannot consider evidence at this stage unless it is subject to judicial notice. Defendant also does not cite case law discussing application of the PREP Act in this context. Therefore, the Court declines to sustain the demurrer on the grounds of PREP Act immunity.
9	21-01185998 <i>Jackson vs. Collectors Universe, Inc.</i>	Motion to Appear Pro Hac Vice Defendant Collectors Universe, Inc.'s (also sued as Professional Sports Authenticator a/k/a PSA) Application of Jonathan Parente to Appear as Counsel Pro Hac Vice is GRANTED. Defendant has submitted the verified application of counsel which complies with the California Rules of Court, Rule 9.40. Moving Party is to give notice.
10	22-01285836 <i>Marino vs. Orange County School of the Arts</i>	Motion for Summary Judgement and/or Adjudication Defendant Orange County School of Arts move for summary judgment in favor of Defendant and against Plaintiff Daniel B. Marino is DENIED. Plaintiff's Evidentiary Objections to Defendants' Evidence are OVERRULED for failure to comply with California Rules of Court, Rule 3.1354, subdivisions (a) and (b). Defendant's Evidentiary Objections to Plaintiff's Evidence are OVERRULED for failure to comply with California Rules of Court, Rule 3.1354, subdivisions (a) and (b). Plaintiff's request for judicial notice of excerpts from a publication by the State of California Department of Industrial Relations, Division of Labor Standards Enforcement, entitled "California Child Labor Laws 2013", pursuant to Evidence Code, section 452(b) is GRANTED.

Plaintiff's request for the court to consider its Notice of Errata filed 3/12/24 [ROA 51] is GRANTED.

LEGAL STANDARD – MOTION FOR SUMMARY JUDGMENT

“The party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law. That is because of the general principle that a party who seeks a court's action in his favor bears the burden of persuasion thereon. (See Evid. Code, § 500.) There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850 (fn omitted).)

Code of Civil Procedure section 437c, subdivision (p)(2) states, “A defendant or cross-defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.” Once the defendant has met this burden, the burden shifts to the plaintiff to show a triable issue of one or more material facts exists as to the cause of action or a defense thereto. (Code Civ. Proc., § 437c, subd. (p)(1).)

In ruling on a motion for summary judgment or summary adjudication, the court must “consider all of the evidence” and all of the “inferences” reasonably drawn therefrom [citing Code Civ. Proc., § 437c, subd. (c)] and must view the evidence and inferences “in the light most favorable to the opposing party.” (Aguilar, supra, 25 Cal.4th at p. 843.) A court may not make credibility determinations or weigh the evidence on a motion for summary judgment or adjudication, and all evidentiary conflicts are to be resolved against the moving party. (McCabe v. American Honda Motor Corp. (2002) 100 Cal.App.4th 1111, 1119.) The moving party's papers are to be strictly construed, while the opposing party's papers are to be liberally construed. (Committee to Save Beverly Highland Homes Ass'n v. Beverly Highland (2001) 92 Cal.App.4th 1247, 1260.)

MERITS

In his complaint, Plaintiff alleges Defendant terminated him from his job as a part time temporary substitute teacher in retaliation for disclosing, or threatening to disclose, Defendant's alleged illegal practices and

activities, including illegal child labor practices and exposing students to health and safety hazards. (Complaint, ¶¶ 8-10, 12, 13, 17, 18.)

Labor Code section 1102.5, subdivision (b) provides: “An employer, or any person acting on behalf of the employer, shall not retaliate against an employee for disclosing information, or because the employer believes that the employee disclosed or may disclose information, to a government or law enforcement agency, to a person with authority over the employee or another employee who has the authority to investigate, discover, or correct the violation or noncompliance, or for providing information to, or testifying before, any public body conducting an investigation, hearing, or inquiry, if the employee has reasonable cause to believe that the information discloses a violation of state or federal statute, or a violation of or noncompliance with a local, state, or federal rule or regulation, regardless of whether disclosing the information is part of the employee's job duties.”

“[S]ection 1102.6, and not McDonnell Douglas, supplies the applicable framework for litigating and adjudicating section 1102.5 whistleblower claims.” (Lawson v. PPG Architectural Finishes, Inc. (2022) 12 Cal.5th 703, 712.) “Section 1102.6 provides the governing framework for the presentation and evaluation of whistleblower retaliation claims brought under section 1102.5. First, it places the burden on the plaintiff to establish, by a preponderance of the evidence, that retaliation for an employee’s protected activities was a contributing factor in a contested employment action.” (Id. at 718.) “Once the plaintiff has made the required showing, the burden shifts to the employer to demonstrate, by clear and convincing evidence, that it would have taken the action in question for legitimate, independent reasons even had the plaintiff not engaged in protected activity.” (Id.)

To establish a prima facie case of retaliation under Labor Code section 1102.5, plaintiff must show (1) plaintiff engaged in a protected activity, (2) the employer subjected plaintiff to an adverse employment action, and (3) a causal link between the two. (St. Myers v. Dignity Health (2019) 44 Cal.App.5th 301, 314.)

Defendant argues Plaintiff cannot establish he engaged in protected activities for two reasons: (1) Plaintiff never had a reasonable belief Defendant engaged in illegal activity since Plaintiff cannot point to any specific statute or law Defendant violated and (2) Plaintiff never reported any violation or noncompliance before he was terminated. “To have a reasonably based suspicion of illegal activity, the employee must be able to point to some legal foundation for his suspicion—some statute, rule or regulation which may have been violated by the conduct he disclosed.” (Ross v. County of Riverside (2019) 36 Cal.App.5th 580, 592 [cleaned up].) When the employee is disclosing suspicions of illegal activity, section 1102.5, subdivision (b), does not require an express statement of the specific law the employee believes the employer was violating or not complying with. (Id., at 592-593.) “It requires only that an employee disclose information and that the employee reasonably believe the information discloses unlawful activity.” (Id., at 593.) “This

clause imposes a requirement of objective reasonableness” (People ex rel. Garcia-Brower v. Kolla's, Inc. (2023) 14 Cal.5th 719, 734.) In addition, Plaintiff must prove he disclosed, or threatened to disclose, information about illegal activity or noncompliance “to a government or law enforcement agency, to a person with authority over the employee or another employee who has the authority to investigate, discover, or correct the violation or noncompliance.” (Labor Code, § 1102.5(b).)

Plaintiff has raised a triable issue of material fact as to whether he had a reasonable belief Defendant engaged in illegal activity. Plaintiff alleges Defendant engaged in curfew violations, child labor and exposure to health and safety hazards. (Defendant’s Undisputed Material Facts (DUMF # 32.) Plaintiff has pointed to a legal foundation for his suspicions regarding curfew and child labor law violations based on statements made to him by students. (Plaintiff’s Decl., ¶¶ 19, 20, 21, 22, 46; Ex. I – State of California publication “Child Labor Laws”.) Plaintiff is not required to identify the specific law that was violated. (See Ross, supra 36 Cal.App.5th at 592-593.)

Further, Plaintiff has established a triable issue of material fact as to whether he disclosed these concerns. Defendant points out that Plaintiff testified at his deposition that he did not disclose any claimed illegality to his employer, to someone with authority over those decisions because he felt there were others raising the issues. (DUFM) # 35, 39-41; Plaintiff’s Deposition at pp. 140:22-141:11.) In his opposition, Plaintiff argues he made two disclosures: on 4/13/22 to his co-worker, paraeducator Ciara McCann, and on 4/21/22, to Dean William Wallace. With respect to McCann, Plaintiff states in his declaration that he commented to McCann what appeared to be unfair student labor practices and that he believed child labor regulations applied to the school’s practices that were being violated according to student complaints that were made to both Plaintiff and McCann. (Plaintiff’s Decl., ¶¶ 14, 16, 22, 26.) Defendant does not dispute that Plaintiff made these statements to McCann. Defendant argues that any conversations Plaintiff had with McCann does not constitute a protected disclosure because she did not have corrective authority. However, a protected disclosure can be made to another employee who has “authority to investigate, discover, or correct the violation or noncompliance.” (Labor Code §1102.5(b).) Plaintiff has established that McCann at least had the authority to discover such violations in that she testified at her deposition that her job was to “oversee [students] academic supports as well as behavioral support, mental health support, et cetera.” (Plaintiff’s Ex. M, McCann Deposition, p. 18:15-22.)

With respect to the Wallace, Plaintiff contends the disclosure to Wallace was Plaintiff’s acknowledgement of a prior remark making an “administrative salaries” fairness comparison. Based on this acknowledgment, Plaintiff speculates that Defendant must have known Plaintiff discussed illegal practices before his termination. However, the question is whether Plaintiff himself disclosed to Wallace. Further, speculative evidence is insufficient to defeat summary judgment. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 163.) Nevertheless,

Plaintiff's disclosure to McCann is sufficient to raise a triable issue of material fact.

Lastly, Plaintiff has established a triable issue of material fact as to whether Defendant terminated Plaintiff for legitimate, independent reasons even if he had not engaged in protected activity. Defendant's stated reasons for terminating Plaintiff was for violating Defendant's sexual harassment policy and deviating from lesson plans.

Regarding harassment, Defendant's evidence establishes that Plaintiff made McCann uneasy after he spoke to vulnerable students about triggering issues on; referred to her as a "rad sister"; sent her numerous messages on Instagram and personally confronted her after she did not respond; McCann questioned whether Plaintiff was trying to establish a romantic relationship; in the lunchroom on 4/21/22, Plaintiff made eye contact with McCann when he expressed his love to a room full of colleagues, and after leaving the room he returned and knelt next to McCann to hand her a sticky note. (DUMF # 7, 8, 9, 12-21.) Wallace investigated and confirmed all of the foregoing on 4/21/22 and concluded Plaintiff violated Defendant's sexual harassment policy by engaging in conduct that had the purpose or effect of unreasonably interfering with an individual's work or academic performance or creating an intimidating, hostile, or offensive work environment. (DUMF # 22-31.) Regarding deviating from the lesson plans, Defendant's evidence establishes that on 4/21/22, Plaintiff admitted to Wallace that he discussed matters including administrator salaries and child labor practices during the wellness seminar. (UMF # 30.) On this basis, Wallace concluded Plaintiff did not follow the lesson plans with fidelity. (DUMF #31.) Defendant terminated Plaintiff on 4/21/22. (DUMF # 1.)

Plaintiff's evidence establishes Defendant ignored the Plaintiff's employment contract. Although the contract provides that Plaintiff's employment was "for temporary at-will employment and may be terminated by the BOARD or its designee without cause at any time," "the AGREEMENT may be terminated for any cause specified in the BOARD policy." (P's Ex. K – Employment Contract dated 1/10/2022, ¶ 1.) The contract further outlines the process for terminating with and without cause. Namely, termination without cause can be done at any time but must be done in writing upon 30 days written notice to P. (P's Ex. K – Employment Contract dated 1/10/2022, ¶9(f).) Termination with cause during the school year does not require 30-day notice, but reasons for termination must be presented in writing and Plaintiff must be given an opportunity to meet with the Board to give his version of events before termination. (P's Ex. K – Employment Contract dated 1/10/2022, ¶9(g).) Plaintiff did not receive advance notice as required and he was not given an opportunity to explain his version of the alleged misconduct to Wallace, Metoyer or the Board of Trustees. (PRUMF #2.) Instead, he was terminated the same day the misconduct was reported/discovered. This violation of Plaintiff's employment contract, coupled with the hasty investigation, and the close proximity in time between Plaintiff's disclosure of violations to McCann on 4/13/22 and

		his termination on 4/21/22 raises a triable issue of material fact as to whether Defendant would have terminated Plaintiff if he had not engaged in protected activity. (See <i>Scheer v. Regents of the University of California</i> (2022) 76 Cal.App.5th 904, 917-918 [discussing admissibility of circumstantial evidence of pretext].) Based on the foregoing, the motion for summary judgment is DENIED.
11	24-01370449 <i>Martynas Jancius vs. Mercedes-Benz USA, LLC</i>	Motion to Compel Arbitration Defendant Mercedes-Benz USA, LLC’s motion to compel arbitration is DENIED. <u>Third Party Beneficiary</u> Defendant Mercedes-Benz argues it can force arbitration provision of the RISC as a third-party beneficiary. “As a general rule, only a party to an arbitration agreement may enforce the agreement.” (<i>Felisilda, supra</i>, 53 Cal.App.5th 486, 495). However, “[a] contract, made expressly for the benefit of a third person, may be enforced by him at any time before the parties thereto rescind it.” (<i>Goonewardene v. ADP, LLC</i> (2019) 6 Cal.5th 817, 827). In order to determine whether defendant is a “third party beneficiary,” this court must “carefully examin[e] the express provisions of the contract at issue, as well as all of the relevant circumstances under which the contract was agreed to, in order to determine not only (1) whether the third party would in fact benefit from the contract, but also (2) whether a motivating purpose of the contracting parties was to provide a benefit to the third party, and (3) whether permitting a third party to bring its own breach of contract action against a contracting party is consistent with the objectives of the contract and the reasonable expectations of the contracting parties.” (<i>Goonewardene, supra</i>, 6 Cal.5th 817, 829-830). “All three elements must be satisfied to permit the third party action to go forward.” (<i>Id.</i> at 830). In <i>Ngo v. BMW of North America, LLC</i> (9th Cir. 2022) 23 F.4th 942, persuasively analyzed an identical agreement and found a manufacturer was not a third-party beneficiary of the same. (<i>Id.</i> at 946-948). Similar to the contract in <i>Ngo</i>, the contract herein makes clear it is enforceable only by Plaintiff and Mercedes-Benz of Laguna Niguel (and its successors and assignees). Further, as was the case in <i>Ngo</i>, nothing in this agreement articulates an intent to benefit Mercedes-Benz, given the near identical limitation on enforcement. “Although the arbitration clause may have extended to claims regarding the purchase of the vehicle, it does not follow that additional parties can enforce the arbitration clause.” (<i>Ngo, supra</i>, 23 F.4th 942, 948). To hold the above would be to “confuse[] the nature of the claims covered by the